

SENATE No. 1619

The Commonwealth of Massachusetts

PRESENTED BY:

Michael F. Rush

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to requiring trauma kits in public buildings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael F. Rush</i>	<i>Norfolk and Suffolk</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>3/31/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>6/6/2025</i>

SENATE No. 1619

By Mr. Rush, a petition (accompanied by bill, Senate, No. 1619) of Michael F. Rush for legislation relative to requiring trauma kits in public buildings. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1462 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to requiring trauma kits in public buildings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. This act shall be known and may be cited as “The Massachusetts Trauma
2 Response Preparedness Act”.

3 SECTION 2. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
4 is hereby amended by inserting the following new section:-

5 "Section 237. (a) For the purposes of this section, the following terms shall have the
6 following meanings, unless the context clearly requires otherwise:

7 “Public Building”, (1) Any state or local government building that is used for a public
8 purpose, including but not limited to, public schools, town or city halls, libraries, transportation
9 facilities, and senior centers; or (2) any building that is regularly used by the general public - or
10 funded by public sources - with a listed maximum occupancy of at least 300 persons, including

but not limited to private and parochial schools, places of worship, meeting halls, recreational facilities, entertainment venues, and sporting venues

“Trauma Kit”, a kit designed to contain materials to help a general bystander provide first aid to another citizen suffering from a serious, life threatening bleed. At minimum kits must include an adequate tourniquet, gauze, gloves, and a proper training booklet as defined by the American College of Surgeons or an equivalent organization

“Trauma Kit Designee”, a person trained and certified by a representative of the American College of Surgeons or an equivalent organization in the area of bleeding control

(b) All public buildings as defined by subsection (a) as well as any buildings required to house an AED pursuant to section 78A of chapter 93 and section 54C of chapter 71 shall be required to have clearly visible, centrally located, and easily accessible trauma kits as defined by subsection (a) ready for use at all times. The number of trauma kits required per building shall be determined by a formula, which shall take into account the maximum capacity of said building, to be promulgated by the Secretary of Health and Human Services. Said formula shall be informed by the research of the American College of Surgeons.

(c) Any building falling under the purview of subsection (b) shall be required to have on staff an appropriately qualified trauma kit designee as defined by subsection (a) at all times

(d) For the purposes of organizational efficiency, buildings falling under the purview of subsections (b) and (c) as well as section 78A of chapter 93 or section 54C of chapter 71 may share the same storage space for the AED device and the trauma kit as well as designate the same person both an AED provider and Trauma Kit Designee

(e) Any person who, in good faith, attempts to render emergency care including, but not limited to, bleeding control, and does so without compensation, shall not be liable for acts or omissions, other than gross negligence or willful or wanton misconduct, resulting from the attempt to render such emergency care."

SECTION 3. Section 8A of Chapter 69 of the General Laws is hereby amended by inserting at the end thereof the following:-

“(8) The availability and location of trauma kits and those personnel designated as trauma kit designee”

SECTION 4. Section 5 of chapter 44B of the General Laws is hereby amended by inserting at the end thereof the following:-

“A city or town may appropriate money in any year from the Community Preservation Fund for the procurement of trauma kits and a trauma kit designee in a town or city owned building or a public school facility pursuant to section 237 of chapter 111.”